

26STCV13025 26STCV13025

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C9%2C08%2F10%2F2026

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Case Number: 26STCV13025 Hearing Date: August 10, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the August 10, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the August 10, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

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[TENTATIVE] MINUTE
ORDER

Counsel

are ordered to file and serve a Notice of Related Case for any potentially related cases pursuant California Rule of court Rule 3.300, including any class action involving overlapping claims and any PAGA case involving the same representative plaintiff. This is a continuing obligation on both Plaintiffs and Defendants while this case is pending. In particular, Defendant is ordered to file and serve on all parties a Notice of Related Cases in the instant case and also in

CARLOS

JR. MARTINEZ vs AMERICAN GUARD SERVICES, INC., 23STCV01490. Defendant must file and serve the Notice of Related Cases in both cases (26STCV13025 and 23STCV01490) by no later than August 17, 2026. A Non-Appearance Case Review re ruling on Notice of Related Cases is set for September 17, 2026. After the Court (Dept 11) rules on the Notice of Related Cases seeking to relate 26STCV13025 and 23STCV01490, Defendant is ordered to file and serve on all parties a Notice of Related Cases in the instant case and also in BILLY AREVALO vs AMERICAN GUARD SERVICES, INC, et al., 26STCV12955.

Plaintiff's

Counsel has failed to file proof of service of the operative Summons and Complaint on all named defendants.

Specifically, Plaintiff's Counsel has failed to file proof of service of the operative Summons and Complaint on PETER RODRIGUEZ

By no later than October

5, 2026, Plaintiff's Counsel must file either proof of service of the operative Summons and Complaint on PETER RODRIGUEZ or a declaration explaining the failure to file proofs of service of the operative Summons and Complaint on PETER RODRIGUEZ, setting forth any and all efforts undertaken to attempt service of the operative Summons and Complaint on PETER RODRIGUEZ, and explaining why sanctions (including monetary sanctions of at least \$500) should not be imposed for failure to file proof of service of the operative Summons and Complaint on all of the named defendants, in compliance with California Rules of Court, Rule 3.720.

Failure to file

proof of service of the operative Summons and Complaint on PETER RODRIGUEZ by October 5, 2026 may result in the Court setting an OSC re sanctions.

All Defendants are

ordered to file a timely Notice of Appearance within 30 days of service of the operative Summons and Complaint on them.

If any named

Defendant fails to timely respond to service of the operative Summons and Complaint by filing a Notice of Appearance, Plaintiff must timely seek and obtain entry of default against all such named Defendants who fail to timely

file a Notice of Appearance.

The operative

complaint currently does not include any claim for civil penalties pursuant to Labor Code section 2699 (PAGA penalties).

If Plaintiff wishes to amend the Complaint to add a claim for PAGA penalties and is prepared to do so, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint adding a claim for PAGA penalties as long as Plaintiff files and serves such amended complaint by no later than September 7, 2026. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if Plaintiff voluntarily wishes to amend the operative Complaint to add a claim for PAGA penalties, the Court is simply granting leave for Plaintiff to do so. By no later than September 7, 2026, Plaintiff must file and serve a status report as to whether Plaintiff intends to file either a separate action for PAGA penalties or an amended complaint in the instant action adding a claim for PAGA penalties, and if so, when Plaintiff intends to file the claim for PAGA penalties (either as a complaint in a separate action or by way of amendment to the complaint in this action).

The previously

imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to October 12, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than October 5, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.